UNITED STATES OF AMERICA
BEFORE THE
FEDERAL ENERGY REGULATORY COMMISSION

Midcontinent Independent System Operator, Inc.	)))	Docket No. ER27-25-000

PROTEST OF CLEAN ENERGY ADVOCATES AND COMMUNITY ORGANIZATIONS

Pursuant to Rule 211 of the Rules of Practice and Procedure of the Federal Energy Regulatory Commission ("FERC" or "Commission")[1], Clean Energy Advocates[2] and Community Organizations[3] respectfully submit this protest in response to the October 2, 2026 filing of the Midcontinent Independent System Operator, Inc. ("MISO") in the above-captioned docket, which proposes revisions to MISO's Open Access Transmission, Energy and Operating Reserve Markets Tariff ("Tariff") to establish a Large Load Addition Resource Study ("LARS") process.[4] For the reasons explained below, the Commission should reject the LARS proposal.

[1] 18 C.F.R. § 385.211.
[2] Clean Energy Advocates are Sierra Club, Natural Resources Defense Council, and Sustainable FERC Project, Clean Grid Alliance, Clean Wisconsin, and Fresh Energy.
[3] Community Organizations are Community Collaboration on Climate Change and Michigan Environmental Justice Coalition.
[4] Midcontinent Indep. Sys. Operator, Inc., Large Load Addition Resource Study Process, Docket No. ER27-25-000 (Oct. 2, 2026), Accession No. 20261002-5074 ("LARS Filing"). Citations to the "Transmittal Letter" are to the transmittal letter accompanying the LARS Filing. Citations to the "Drake Testimony" are to the Prepared Direct Testimony of Christina Drake, Director, Generation Interconnection, MISO, submitted as Tab C to the LARS Filing.

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I. Introduction

As the Commission has recognized, integrated planning processes can help ensure that generation and transmission can be arranged to supply nearby large customers reliably, at lower cost, and with faster engineering study processes, ultimately resulting in more just and reasonable rates without harming other existing or future customers or suppliers. Better load and generation interconnection processes are clearly needed. MISO's LARS proposal does not achieve that end, nor does it improve other interconnection processes. Instead of improving the coordination of generation and transmission planning, MISO's LARS proposal is a new, permanent parallel interconnection study process that will shift costs from large loads to other existing and future transmission customers and resource owners, create and worsen reliability concerns, and allow for unchecked and harmful anti-competitive discrimination. The Commission should reject LARS because it is not just and reasonable and is unduly discriminatory or, in the alternative, issue a deficiency letter requiring MISO to demonstrate how LARS can be made just and reasonable.

II. Background

A. Large Load Growth and Interconnection

MISO estimates that annual load growth will be 1 to 3 percent per year from 2025 through 2044.[5] MISO integrates new generation and load through separate processes on different schedules.[6] New generation enters either through MISO's cluster-based Definitive Planning Phase ("DPP") or its temporary, serialized Expedited Resource Addition Study ("ERAS"). The DPP operates on a 365-day timeline and ERAS operates quarterly. New load is accounted for

[5] Transmittal Letter at 2-4.
[6] Drake Testimony at 3–4.

through the MISO Transmission Expansion Plan ("MTEP") or the Expedited Project Review ("EPR"). Where MTEP operates on an 18-month cycle, EPR provides approval in roughly 90 days. MISO acknowledges that "large loads have overtaken the EPR process."[7] The 89 EPR requests approved in MTEP26 accounted for roughly 54 percent of the approximately $14.7 billion of transmission investment approved in that cycle.[8]

A generator may be treated as an alternative to a transmission solution only once that generator has a signed interconnection agreement ("GIA").[9] This poses a timing problem. A large load whose transmission solution depends on a new generator cannot obtain MTEP approval until the generator has completed the DPP or ERAS interconnection queues. MISO describes this "timing problem" as the problem the LARS parallel study process is designed to solve.[10]

B. The Show Cause Order

On June 18, 2026, the Commission instituted a proceeding under section 206 of the Federal Power Act ("the Act" or "FPA"), preliminarily finding that MISO's Tariff "appears to be unjust and unreasonable because it lacks provisions that address, with sufficient clarity and consistency, how MISO and/or the Transmission Owners will timely study . . . the provision of transmission service to Eligible Customers on behalf of large loads."[11] The Commission directed MISO to show cause why the Tariff remains just and reasonable without provisions addressing

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[7] *Id.* at 26.
[8] MISO, MTEP26 Report Review, Planning Advisory Committee, at 4, 8 (Oct. 7, 2026), *available at* https://cdn.misoenergy.org/20261007%20PAC%20Item%2006%20MTEP26%20Report%20Review785938.pdf.
[9] Drake Testimony at 12.
[10] *Id.* at 3–4, 12.
[11] *Midcontinent Indep. Sys. Operator, Inc.*, 195 FERC ¶ 61,212, at P 39 (June 24, 2026) ("Show Cause Order").

(a) application, study, and ongoing operational requirements for Eligible Customers serving large loads; (b) transparency concerning large-load-driven Network Upgrade costs and a *pro forma* cost recovery agreement "to mitigate the risk of cost shifting among transmission customers"; (c) co-location arrangements; (d) transmission services for co-located, behind-the-meter, and flexible large loads; and (e) "the rates, terms, and conditions of service applicable to interconnection customers serving electrically proximate large load or co-located load."[12] Three parts of the Show Cause Order bear directly on LARS: study procedures, cost shifting, and proximate loads.

1. Study procedures for large loads

The Commission found that the Tariff lacks "sufficiently clear and consistent provisions regarding the study process" for large loads, pointing to the "*ad hoc* study process" reflected in Transmission Owner study agreements "not reflected in MISO's Tariff," and identified the elements such provisions should contain. These include:

(1) A definition of large load.

(2) A rolling application process with non-refundable fees, escalating readiness requirements, and disclosure of duplicative requests.

(3) Study procedures that account for large-load behavior and flexibility.

(4) Evaluations of alternative transmission technologies "in all instances," with a written demonstration whenever traditional Network Upgrades are selected instead.

(5) A 60-to-90-day study deadline.

(6) Ongoing operational requirements.

[12] Show Cause Order at P 33.

(7) *Pro forma* transmission service agreement provisions.[13]

2. Cost shifting

The Commission found that the Tariff "appears to be unjust and unreasonable because it lacks adequate mechanisms to mitigate the risk of cost shifting among transmission customers," and identified two remedies. First, public posting of the Network Upgrades needed to serve large loads and their costs.[14] Second, a *pro forma* cost recovery agreement requiring the Eligible Customer to make "a minimum contribution toward the transmission owner's transmission revenue requirement," sized to the megawatts of service requested and secured by credit support, so that large-load-driven costs are not "paid by other transmission customers that neither caused the need for nor benefit commensurately from those Network Upgrades."[15]

3. Generation serving electrically proximate load

The Commission defined an "electrically proximate large load" as one "sufficiently electrically close to the interconnection customer's requested point of interconnection" that the combined impact of generator and load "will be effectively the same as if they were located at the same substation (e.g., large load that is located no more than two substations away from the generating facility)," and invited revisions "appropriately tailored to MISO's transmission system."[16] It found that MISO's Tariff is deficient because it lacks a study process or interconnection service that reflects "an interconnection customer's commitment in an interconnection agreement to limit the generating facility's output" while serving such a load.[17]

[13] *Id.* at PP 39, 48–50, 57–65.
[14] *Id.* at PP 71–77.
[15] *Id.* at P 82.
[16] *Id.* at P 112.
[17] *Id.* at P 113.

Referencing SPP's High Impact Large Load Generation Assessment ("HILLGA") process, the Commission stated that such a generator's interconnection service "should be of an interim nature until the interconnection customer obtains" Energy Resource Interconnection Service ("ERIS") or Network Resource Interconnection Service ("NRIS"), and noted that MISO's system "may warrant consideration of a more limited definition of electrically proximate."[18] The Commission directed that any responsive filing to the Show Cause Order address whether such generators would participate in MISO's energy, ancillary services, and capacity markets, with what restrictions, and how they would be accredited.[19]

The Commission "strongly encourage[d]" MISO to address these directives through filings under section 205, but specified that any such filing "should also explain which of the Commission's above directives their filing addresses and how it resolves them."[20]

C. The LARS Proposal

On October 2, 2026, MISO filed proposed revisions to Attachment X (the Generator Interconnection Procedures, or "GIP"), Appendices 1 and 6 to Attachment X, and Attachment FF to establish the Large Load Addition Resource Study, with a requested effective date of December 2, 2026 and a first study period in the first quarter of 2027.[21] MISO described LARS as "expedited review of the addition of 200 MW or greater loads together with new generation resources that are electrically proximate to those loads," conducted in a parallel study process lasting up to 120 days that builds on EPR and ERAS.[22] Unlike ERAS, however, LARS "will be a permanent MISO study process."[23]

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[18] *Id.* at P 115.
[19] *Id.* at P 127.
[20] *Id.* at P 36.
[21] Transmittal Letter at 2, 53.
[22] *Id.* at 1–2.
[23] *Id.* at 11.

LARS creates at least two major changes to how generation interconnection and transmission planning function in MISO. First, LARS creates an exception to the EPR requirement described above in which a generator can be considered an alternative transmission solution only after it has a GIA. Under MISO's proposed process, a generator that has submitted a valid LARS application and holds a five-year or longer contract (e.g., Power Purchase Agreement or similar off-take agreement) with the large load "may be considered as an alternative transmission solution" in the load study even though it does not have a GIA.[24] Second, the proposed process creates a new, 120-day serial generator interconnection track outside of the DPP and ERAS, through which the paired generator receives NRIS under a new form of agreement called the Large Load Generator Interconnection Agreement ("LLGIA").[25] MISO presents LARS as responsive to the Show Cause Order's electrically proximate directive and resource adequacy concerns, and as independent of "[t]he cost shifting issues raised in the Commission's Show Cause Order," which "will be addressed in future filings."[26]

Four entities drive the LARS process. Only the entity that procures transmission service for a large load may initiate and submit a LARS Application.[27] This entity is called a "LARS Associated Transmission Customer," which MISO states is often a Load Serving Entity ("LSE").[28] MISO's proposal does not set any criteria, timelines, or disclosure obligations on a LARS Associated Transmission Customer's decision whether to sponsor a particular generator and load. A generator-load pair, however, has no path into LARS without such sponsorship.[29]

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[24] *Id.* at 48.
[25] Transmittal Letter at 11; Drake Testimony at 12–13.
[26] Drake Testimony at 39–41.
[27] Transmittal Letter at 6.
[28] *Id.*
[29] *Id.* at 6–8. MISO retained this structure over stakeholder objections, citing "mixed feedback." MISO Large Load Working Group, MISO Response to Feedback, at 7 (Sept. 28, 2026), *available at*

Second, the Interconnection Customer develops a generating facility, demonstrates that it will provide energy to the LARS Associated Load, and signs the LLGIA.[30] Third, the Transmission Owner coordinates with the Interconnection Customer to identify a "definitive Point of Interconnection," supplies the initial transmission solutions that are evaluated in the load study, and constructs the necessary Network Upgrades.[31] Finally, the "LARS Associated Load" is defined as a single load of at least 200 MW at one Point of Withdrawal.[32]

A LARS Application must include an executed agreement with a term of at least five years, "evidencing that the output of the Generating Facility . . . shall be used to provide energy to the LARS Associated Load."[33] The Interconnection Customer must request NRIS of at least 200 MW and no more than 150 percent of the LARS Associated Load's expected peak demand, demonstrate 100 percent site control, and pay an application fee of $250,000 and an entry milestone of $30,000 per MW.[34] Aside from the 150 percent cap, nothing requires the paired generation to be sized to any particular share of the load's demand. Nor do the eligibility criteria require any demonstration of a reliability or resource adequacy need. The Point of Interconnection must be in the same Local Resource Zone ("LRZ") as the load's Point of Withdrawal.[35] A LARS Associated Load may be served by more than one Interconnection Customer, though MISO will accept only ten LARS Applications total per study period.[36] The generator's commercial operation date and the load's full in-service date must fall within three

https://cdn.misoenergy.org/LLWG%20Large%20Load%20Addition%20Resource%20Study%20Response%20(LLWG-2026-6)%20(20260827)784877.pdf.
[30] Transmittal Letter at 6.
[31] *Id.* at 6–8.
[32] *Id.* at 7.
[33] *Id.* at 27.
[34] *Id.* at 7, 10, 25.
[35] *Id.* at 10.
[36] *Id.* at 9, 11.

years of the application, subject to a further three-year extension under the LLGIA.[37] MISO acknowledges that it "does not have a requirement that loads bring generation," and characterizes LARS as "an incentive for Load to bring Generation."[38]

MISO will accept applications on a rolling, "serial 'first-come, first-served'" basis and study up to ten generation/load pairs in each of the three study periods per year.[39] On the generation side, each generator is studied "individually in a serial fashion" in its own model.[40] The LARS base model includes existing generators, generators with executed GIAs, and approved MTEP and EPR projects, but excludes DPP projects without an executed GIA.[41] On the load side, the study is "built upon MISO's existing EPR process."[42] All ten load-generation pairs are represented together in a single MTEP-based model, the Transmission Owners' initial solutions are evaluated, and MISO establishes a planning-level solution.[43] Although the load-generation pair must be located in the same LRZ, "MISO will look at the full impacts of the generation/load pair on MISO's Transmission System using the same study criteria and processes applicable to NRIS evaluations of other Interconnection Requests."[44] If there is an overallocation because transmission capacity is ultimately found to have been allocated to both a LARS generator and a DPP generator, the resulting constraint "will be formalized in a future MTEP project,"[45] "neither will be required to pay additional costs,"[46] and the MTEP project's

[37] Drake Testimony at 10.
[38] Transmittal Letter at 10.
[39] Drake Testimony at 13, 22.
[40] Transmittal Letter at 32.
[41] *Id.* at 12.
[42] *Id.* at 13–14.
[43] *Id.* at 13–14.
[44] *Id.* at 13.
[45] *Id.*
[46] Drake Testimony at 33.

cost "will be allocated based on existing Tariff rules, which is likely to be the load within the transmission pricing zone where the transmission upgrade is required."[47]

With respect to cost allocation, MISO allocates mitigations to the Baseline Reliability Project ("BRP") or "Other" project types except for mitigation violations observed in the generation study, which are assigned to the Interconnection Customer as Generator Interconnection Project ("GIP") upgrades.[48] BRP and Other upgrades are constructed by the Transmission Owner and the costs are recovered through transmission rates under the existing provisions of Attachment FF rather than funded by the Interconnection Customer. According to MISO, these costs will most likely be allocated to "the load within the transmission pricing zone where the transmission upgrade is required."[49]

LARS generators receive full NRIS, allowing them to "qualify as a Network Resource for capacity and resource adequacy needs" and to "participate in the Planning Reserve Auction."[50] The LLGIA does not require output to be tied to the load except insofar as the generator cannot inject until some portion of the load is in service.[51] Once the load is fully in service, the LLGIA does not limit the generator's output in any way.[52] While the generator's output is not limited by its paired load, the generator and load must remain contractually paired for at least fifteen years after the load begins taking service.[53] MISO justifies the fifteen-year term as "a standard duration for large load contracts" and as sufficient "to deter entities from invoking the needs of a specific

[47] Transmittal Letter at 13.
[48] *Id.* at 31–32.
[49] *Id.* at 13.
[50] Drake Testimony at 12–13.
[51] *Id.* at 26–30.
[52] *Id.* at 18.
[53] Transmittal Letter at 15–17.

large load as a pretext to bypass the DPP queue and receive unrestricted Interconnection Service on an accelerated timeline."[54]

D. The Stakeholder Process

MISO developed LARS in eleven weeks. It first presented the concept to its Large Load Working Group ("LLWG") on July 16, 2026.[55] After presenting revisions at different meetings, MISO presented final language on September 23 and filed on October 2.[56]

Stakeholders raised, and MISO declined to address, several of the concerns presented in this protest. The Environmental Sector objected to the Transmission Customer's gatekeeping role, to the LRZ-wide scope of the pairing requirement, and to LARS's failure to meet the Show Cause Order's electrically proximate standard, and asked that generators and loads be jointly liable for upgrade costs if a pairing ends early. Energy Futures Group presented the Generator and Load Interconnection Process ("GALIP"), which would study large loads and their generation together within the DPP, with full cost-causation-based allocation of upgrade costs and both firm and non-firm service options for load.[57] MISO declined to pursue GALIP, stating that it "does not believe in a 'one size fits all' approach to interconnection" and that GALIP "aimed to shoehorn a parallel generation/load study process into the existing DPP process."[58]

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[54] *Id.* at 17.
[55] Drake Testimony at 41.
[56] *Id.* at 41–43.
[57] Energy Futures Group, Generator and Load Interconnection Process (GALIP) (Aug. 27, 2026), *available at* https://cdn.misoenergy.org/20260827%20LLWG%20Item%2013%20Generator%20Load%20Interconnection%20Process%20(GALIP)%20Proposal_Energy%20Futures%20Group777224.pdf.
[58] Drake Testimony at 43–44.

III. Arguments

A. LARS creates a cost shift from large loads and their generation to other customers

It is a long-standing principle of Commission ratemaking that "all approved rates reflect to some degree the costs actually caused by the customer who must pay them," and that compliance is measured "by comparing the costs assessed against a party to the burdens imposed or benefits drawn by that party."[59] In the Show Cause Order, the Commission preliminarily found that MISO's Tariff violates that principle because it "lacks adequate mechanisms to mitigate the risk of cost shifting among transmission customers" when large loads drive network upgrades.[60] LARS does not supply those mechanisms. By MISO's own account, LARS adopts no cost allocation methodology, and "[t]he cost shifting issues raised in the Commission's Show Cause Order will be addressed in future filings."[61]

Instead, LARS builds cost shifting into the process in four ways. First, it assigns the network upgrades that a generator-load pair requires to the transmission pricing zone rather than to the pair. Second, it studies LARS generators in models that exclude the DPP queue, and resolves the resulting double-allocation of transmission capacity through MTEP projects paid for by zonal load and through curtailment of DPP generators that paid for their own upgrades. Third, it allows either half of a pair to leave the system after fifteen years and the generator to fail at any time, leaving zonal load to pay for whatever transmission must then be built. Fourth, it defers the cost recovery agreement, financial security, and transparency measures the Commission identified as necessary. The Commission should reject LARS or, at a minimum, decline to make

[59] *Midwest ISO Transmission Owners v. FERC*, 373 F.3d 1361, 1368 (D.C. Cir. 2004) (quoting *KN Energy, Inc. v. FERC*, 968 F.2d 1295, 1300 (D.C. Cir. 1992)); *Ill. Commerce Comm'n v. FERC*, 576 F.3d 470, 476 (7th Cir. 2009).
[60] Show Cause Order at P 66.
[61] Drake Testimony at 41.

it effective until the cost provisions MISO has promised are filed, accepted if consistent with the Order to Show Cause principles, and incorporated into the LARS Tariff provisions.

1. LARS assigns upgrade costs to the pricing zone

As explained above, LARS sorts network upgrades identified in its load and generation studies into three categories: violations in only the load study, violations in only the generation study, and violations in both studies. Violations that occur only in the load study or in both the load and generation studies are assigned the BRP or Other project types and their costs are allocated to all loads in the Transmission Owner's pricing zone. Only when a violation occurs in the generation study alone will MISO assign the costs of the mitigations to the Interconnection Customer as a GIP upgrade.[62] MISO calls this a "cost allocation hierarchy—transitioning from GIP to BRP when appropriate."[63] This hierarchy represents impermissible cost shifts.

When the costs of mitigation are assigned to BRP or Other project types, those costs are allocated to the Transmission Owner in whose pricing zone the project is located. Those costs are then recovered through the Transmission Owner's rates, paid for by every transmission customer in the zone. MISO explains that the costs will fall on "the load within the transmission pricing zone where the transmission upgrade is required."[64] In contrast, when the same generator interconnects through the DPP, the Interconnection Customer funds the Network Upgrades its interconnection requires. LARS, therefore, takes a category of costs usually assigned to generators and assigns them to existing load. It is not as though the beneficiaries are unknown or diffuse. Rather, the beneficiaries are simply the generator and the large load, for which the generator is the "alternative transmission solution."[65] MISO has failed to show how the LBA or

[62] Drake Testimony at 27–28.
[63] Transmittal Letter at 14.
[64] *Id.* at 13.
[65] *Id.* at 47-48.

LRZ suddenly benefit from the needed upgrades simply because violations show up in the load and the generation studies. And in none of these situations is the cost assigned directly to the large load that is driving the need for the upgrades. This kind of cost shifting is exactly the sort of thing the Commission found unjust and unreasonable in the Show Cause Order.

LARS is likely to shift the *cumulative* upgrades needed to support the transmission system, because of the serialized LARS study process. Each LARS generator is studied "individually in a serial fashion" in its own model.[66] Unlike a DPP cluster study, which identifies the upgrades a group of generators needs together and allocates their costs among the cluster, the LARS generation study never captures the combined effect of the ten generators and loads in a study period, let alone of the thirty pairs that may enter LARS each year. In fact, constraints that emerge from the cumulative injection of LARS generators or cumulative impacts of LARS large loads are most likely to appear in a load study where all ten pairs are studied together. In that case, however, as explained above, those mitigations will be classified as BRP or Other. Otherwise, the problems will reveal themselves in a later MTEP study. Either way, costs will be allocated not to the load-generation pair, but to all load in the zone.

The pricing zone that pays for upgrades caused by LARS projects may not even be the LBA in which the LARS Associated Load takes service. While load-generation pairs must be in the same LRZ, MISO studies "the full impacts of the generation/load pair on MISO's Transmission system" without confining the study to that zone.[67] A single LRZ can span multiple LBAs, Transmission Owner pricing zones, and states. Because MISO declined to limit the generation/load pairs to a single LBA or to a set number of substations, the result is that customers of one Transmission Owner, in one state, can be assigned the cost of upgrades

[66] *Id*. at 12, 31.
[67] *Id.* at 10–13.

required because a data center in another state chose to contract with a generator sited near them. The state regulator responsible for protecting those customers has no jurisdiction over the load that caused the cost, and the retail large load tariffs states are adopting to protect their ratepayers cannot reach a load in another state.[68] This is textbook cost shifting, which the Commission has recently noted as a concern in the large load context.[69]

Transmission upgrade costs associated with LARS generation should not be assigned to load generally, because both the driver and the beneficiaries of the upgrade are a specific generator-load pair.[70] The NRIS service for a LARS Interconnection Customer hinges on the consumption of the LARS associated load. MISO acknowledges this tight connection by terminating the LLGIA, and sending the generator back to the DPP for new interconnection service if the load leaves or shrinks within fifteen years.[71] A generator whose interconnection service is contingent on one load's consumption is not a system resource whose upgrades benefit the zone.

MISO insists that the LARS Associated Transmission Customer "remains responsible for the identified BRPs and Other assigned projects even if such LARS Associated Load does not commence service."[72] Yet the Tariff contains no mechanism through which a Transmission Customer pays for the BRP or an Other project. A Transmission Customer's only

[68] *Cf.* Show Cause Order at P 83 n.189 (cost recovery directive is "in no way intended to preempt or interfere with the ability of states to implement ratepayer protection measures designed to mitigate cost shifting among retail customers, such as through state-jurisdictional large load tariffs."). Those measures presuppose that the ratepayers who bear the cost and the load that caused it are subject to the same regulator.
[69] *See* Show Cause Order at PP 66, 81–82.
[70] *See* Drake Testimony at 17 (describing the "contractual association, study association, and operational association" between the LARS Associated Generation and LARS Interconnection Customer).
[71] Transmittal Letter at 16.
[72] *Id.* at 35–36.

"responsibility" for those costs is the one it already has to pay the Transmission Owner's zonal rate in the same proportion as every other network customer in the zone. A Transmission Customer that "remains responsible" for a $200 million BRP after its load fails to materialize remains responsible for nothing more than its ordinary transmission bill. That is precisely the gap the Commission identified when it found that, "[a]bsent such cost recovery agreements, . . . there is no mechanism to help ensure that Eligible Customers taking transmission service on behalf of large loads (as opposed to other transmission customers) bear the risk of, and are ultimately responsible for, the costs incurred to provide them with the requested transmission service, including the costs of any needed Network Upgrades."[73] Rather than responding to the Commission's call to fill this gap in cost recovery agreements, MISO merely states that the "cost shift is consistent with MISO's existing processes."[74] Yet it is these existing processes that the Commission preliminarily found unjust and unreasonable because they lack "adequate mechanisms to mitigate the risk of cost shifting among transmission customers."[75]

MISO states that "a *pro forma* cost shifting agreement will need to be executed and new terms in transmission services agreements will need to be met," that it will file those terms by November 16, and that "LARS can be implemented based on the Tariff revisions filed herein and need not await these future filings."[76] But nothing in the proposed Tariff requires a LARS Associated Transmission Customer to execute any such agreement, post any security for the BRP and Other upgrades assigned to the zone, or take any defined transmission service. The only party that posts security in LARS is the generator, and only for the GIP upgrades that LARS

[73] Show Cause Order at P 81.
[74] Transmittal Letter at 13.
[75] Show Cause Order at P 66.
[76] Transmittal Letter at 14 & n.66.

defines as the residual.[77] The Commission's statutory deadline to act on LARS will arrive before comments on the November 16 filings are due. A process that assigns upgrade costs to zonal load now, on the strength of an agreement whose terms are not before the Commission, has not been shown to be just and reasonable.

2. LARS shifts costs to interconnection customers in the DPP

LARS shifts costs to interconnection customers in the DPP, to the disadvantage of generators in the DPP compared to those related to LARS projects. In the DPP, MISO models the system headroom by assuming that all higher-queued generating facilities will enter operation.[78] By contrast, in LARS, MISO proposes to model only DPP projects with a signed GIA.[79] These differing approaches risk MISO allocating transmission headroom twice.[80] Rather than reconcile the double-allocation, MISO proposes that "[b]oth [projects] will be allowed to proceed, and neither will be required to pay additional costs due to the overallocation."[81] Failing to coordinate DPP and LARS shifts costs onto DPP customers.

LARS generators are studied as though the DPP queue does not exist. They are assigned none of the upgrades that their injections require in combination with the queued projects ahead of them. Those upgrades are left to the DPP customers, who are assigned them on the assumption that the headroom in their models would still exist when they reach commercial operation. When LARS and DPP generators both come online and the system cannot deliver to both, the result is a reliability gap. This leads to unplanned curtailments and degraded operating conditions, which will result in instances where the DPP customer would have been able to export energy and

[77] *See* Proposed GIP §§ 3.3.1, 3.12.2, 3.12.4; Proposed Attachment FF § I.D.1.b.ii; Transmittal Letter at 10, 25.
[78] Transmittal Letter at 12.
[79] *Id.* at 12–13.
[80] Drake Testimony at 32–33.
[81] *Id.* at 32–33.

receive market payments, but for the LARS customer causing unmitigated congestion. While interconnection customers do not have a right to any particular system topology, a decrease in available headroom and degraded operating conditions represent cost shifts to generators in the DPP, because that same headroom is instead being allocated to LARS projects.

In the long term, MISO proposes that the constraints caused by the double-allocation of headroom will be "formalized in a future MTEP project"[82] whose cost falls on "the load within the transmission pricing zone."[83] Reliance on future MTEP projects, however, is both insufficient and too late. MISO's reliance on later MTEP cycles will not cure the reliability gap caused by the double-allocation.[84] LARS projects, not having been studied with the advanced Phase 3 DPP interconnection projects reaching commercial operation in the same time frame, may cause costly reliability upgrades in that future MTEP cycle, yet those costs will now become shifted to other transmission customers and market participants.[85] While this presents its own set of cost-shifting concerns, it also does not address the fact that these further upgrades identified in later MTEP cycles might take years to construct. During this time, the LARS generator would not face operating restrictions, while a DPP project operating before its Network Upgrades are complete is subject to Quarterly Operating Limits and Annual ERIS/NRIS limits.[86]

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[82] *Id.* at 33.
[83] Transmittal Letter at 13.
[84] *See* Affidavit of Warren Hess ¶¶ 2–3, attached to Protest of Clean Energy Organizations, Docket No. ER25-1674-000 (Apr. 7, 2025), Accession No. 20250407-5242 (explaining that excluding late-stage DPP projects from an expedited interconnection study produces reliability gaps, and that resolving the resulting overallocation of transmission headroom through the annual MTEP process does not cure them because of the limited scope of NRIS studies).
[85] Because LARS projects are studied without the DPP queue, the costs a LARS pair would bear if its full impacts were known are understated, and the balance is assigned to zonal load through later MTEP projects.
[86] *See* GIP § 11.6 (Quarterly Operating Limit studies for Interconnection Customers operating before their Network Upgrades are complete); Proposed LLGIA art. 9.7.4.7 (operating limits on a LARS Generating Facility apply only while the LARS Associated Load phases in); Transmittal

MISO's only justification for excluding the DPP queue from LARS models is "to reduce the number of speculative projects in the modeling process."[87] MISO, however, concedes that project withdrawal rates fall sharply as projects advance through the DPP, so that by the GIA stage they are "more closely aligned with the MTEP withdrawal rate."[88] MISO's own consultant has found that, of the capacity that withdrew from the 2017–2020 DPP cycles, only about 11 percent withdrew at Phase 3 or later.[89] Nor are large loads somehow immune from withdrawals from the EPR process.[90] Yet LARS includes EPR projects in its base model and includes the LARS Associated Load on the strength of a five-year contract and $250,000 fee, while excluding DPP generators that have posted milestone payments, completed two phases of study, and been assigned Network Upgrade costs. MISO also never explains why speed in LARS is so critical that it justifies this result. When MISO sought comparable modeling shortcuts for ERAS, it justified them by reference to specific resource adequacy and reliability needs verified by the Relevant Electric Retail Regulatory Authority ("RERRA"). It also limited the process by capping ERAS at 68 projects and sunsetting the whole program by the end of 2027. LARS is permanent, uncapped, and requires no showing of need at all.

The same problem can arise on the load side. LARS loads are studied in their own model, in parallel with the EPR and MTEP studies of other large loads, and the filing does not say

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Letter at 17 (QOL and AERIS limits apply to a LARS Generating Facility only during the transition period after its load departs).

[87] Transmittal Letter at 12.

[88] Drake Testimony at 33.

[89] Charles River Associates, MISO Interconnection Queue: M2, M3 and M4 Security Deposits and Return Procedures – Evaluation and Suggested Adjustments, 8 (Aug. 26, 2023), *available at* https://cdn.misoenergy.org/20230719%20PAC%20Item%2006%20Charles%20River%20Associates%20Queue%20Reform%20Report629633.pdf.

[90] MISO, EPR Statistics Update, EPR-TSTF (Sept. 8, 2026) (listing withdrawn EPR requests), *available at* https://cdn.misoenergy.org/20261006%20EPR-TSTF%20Item%2003%20MISO%20EPR%20Statistics785900.pdf.

whether a LARS load will be reflected in concurrent EPR studies or vice versa. MISO's own witness confirms that the LARS load study is interim. The Large Load Project Review process is "currently under development," and MISO is drafting it "such that the load study portion can be easily inserted into LARS at a later point in time." Until then, two large loads studied in parallel models can be allocated the same transmission capacity. As on the generation side, MISO will rely on MTEP to reconcile these conflicts, resulting in BRP or Other projects paid for by the zone.

3. Generation-load pair failures shift costs to other ratepayers

Like conflicts between the DPP and LARS processes, generation-load pair failures shift costs to other ratepayers. The premise of LARS is that studying the generator and the load together leads to fewer upgrades than either would need alone. The generator is treated as an alternative transmission solution for the load and the load's withdrawals are the reason the grid can accommodate the generator's injections.[91] However, when that pairing fails, LARS places the resulting costs on neither party. If the generator fails to reach commercial operation or retires, MISO will rely on MTEP to approve a BRP or Other project at the zone's expense. If the load departs within fifteen years, the generator may continue operating for a year, extended by a full DPP cycle, and may then obtain unconditional NRIS through the DPP.[92] After fifteen years, the generator keeps full NRIS of up to 150 percent of the departed load's peak demand with no further study and no cost at all.[93] In each case, the transmission needed to accommodate an unpaired injection of that size was never studied and never assigned, and the Tariff leaves it to be formalized through MTEP and paid for by zonal load.

[91] Drake Testimony at 4.
[92] Transmittal Letter at 16–18.
[93] *Id.* at 16–18.

This is not the ordinary risk that any generator may someday retire. A retirement removes injections from the system and is reviewed through Attachment Y. LARS creates a standing injection that was studied only on the assumption of a matched withdrawal, which the Tariff then allows to persist after the withdrawal is gone. Up until the fifteenth year, a generator whose paired load departs "would need to obtain new Interconnection Service through the DPP to continue making injections," because MISO recognizes that the generator's service was premised on the load.[94] Nothing about that premise changes in year fifteen. MISO defends the cutoff as "a standard duration for large load contracts" and as long enough "to deter entities from invoking the needs of a specific large load as a pretext to bypass the DPP queue."[95] But a deterrent to pretext is not a reason to relieve a generator of the costs its unpaired injections impose. The customers who will bear those costs in year sixteen are the same customers the Show Cause Order is meant to shield from paying the costs of data centers.

B. LARS violates open access principles and enables undue discrimination

LARS sets up a generation and load study process that would offer a limited number of projects preferential access to the transmission system each year, year after year. It does so in a way untethered to any purported system need (that only LARS can address), while allowing self-interested and often vertically integrated utilities to determine which projects can access the process without any mechanism for public, regulatory, or even MISO oversight. The result is a never-ending process that would permanently and flagrantly violate longstanding open access principles and the FPA's prohibition against undue discrimination with each LARS cycle. The Commission accordingly should reject the proposal.

[94] *Id.* at 16.
[95] *Id.* at 17.

1. MISO's LARS proposal is unduly discriminatory

Under the FPA, a rate design must be non-discriminatory and non-preferential as well as being just and reasonable.[96] As the D.C. Circuit has observed, the Act "bristles with concern for undue discrimination."[97] The Commission and courts have consistently found that "[d]iscrimination is undue when there is a difference in rates or services among similarly situated [entities] that is not justified by some legitimate factor."[98] Different treatment is only justified if the record "evidence show[s] factual differences to justify" it.[99]

As Commissioner See has previously explained, when a "proposal's goal is to get some interconnection requests through the study process faster than others, the Commission is by definition asked to greenlight discrimination."[100] Here, LARS sets up a generation and load study process that will offer an unlimited number of generation projects and loads preferential access to the transmission system. LARS generators also obtain the additional significant benefit of access to MISO's Planning Resource Auction ("PRA"). LARS accomplishes this in a way that is unrelated to any technical or operational limitation or purported system need, and allows self-interested vertically integrated utilities the ability to determine which projects can access the process without any mechanism for Commission, or even MISO, oversight. The result is a study process that violates the FPA's prohibition against undue discrimination, and its longstanding

[96] *See* 16 U.S.C. § 824d(a)–(b); *see also Ala. Elec. Co-op., Inc. v. FERC*, 684 F.2d 20, 27 (D.C. Cir. 1982).
[97] *Associated Gas Distribs. v. FERC*, 824 F.2d 981, 998 (D.C. Cir. 1987).
[98] *El Paso Natural Gas Co.*, 104 FERC ¶ 61,045, at P 115 (2003) (footnote omitted); *State Corp. Comm'n v. FERC*, 876 F.3d 332, 335 (D.C. Cir. 2017) (undue discrimination occurs only if the entities are "similarly situated"); *see also Ark. Elec. Energy Consumers v. FERC*, 290 F.3d 362, 367 (D.C. Cir. 2002); *Consol. Edison Co. of N.Y., Inc. v. FERC*, 45 F.4th 265, 281 (D.C. Cir. 2022).
[99] *Elec. Consumers Res. Council v. FERC*, 747 F.2d 1511, 1516 (D.C. Cir. 1984).
[100] *Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,131 (2025) (See, Comm'r, concurring at P 2).

open access principles. Specifically, the proposal runs afoul of the Commission's prohibition on undue discrimination by: 1) allowing one class of similarly situated entities expedited access to the MISO Planning Resource Auction; 2) allowing one class of load (load over 200 MW) expedited access to the transmission system; and 3) allowing LSEs the ability to favor their own resources over competitors in pairing them with large loads. The Commission should reject the proposal for any of these three independent reasons.

a. The LARS framework unduly discriminates among similarly situated resources seeking to participate in MISO's Planning Resource Auction

MISO's proposal is unduly discriminatory because it grants generators associated with qualifying large loads an accelerated pathway to obtain access to MISO's Planning Resource Auction market that is unavailable to similarly situated generators participating in the ordinary DPP process. As noted in the LARS Tariff filing, "A LARS Generating Facility will have the ability to participate in the Planning Reserve Auction ("PRA") and support resource adequacy."[101] This benefit flows from MISO's choice to allow LARS generators to receive NRIS service. However, MISO justifies LARS as a large load-serving interconnection pathway, not as a general market-entry pathway. By allowing LARS generators unfettered NRIS interconnection rights, as opposed to a more limited interconnection framework, LARS is not a narrowly tailored mechanism to accelerate the integration of large loads onto the bulk power system; instead, it also creates a secondary, unrelated, and unnecessary substantial benefit to those resources by providing them a pathway for those generating resources to participate in MISO's broader capacity construct. MISO provides no justification for providing access to LARS generators to

[101] Drake Testimony at 13 (note Ms. Drake mistakenly identifies the auction as the "Planning Reserve Auction," when the proper naming convention is the "Planning Resource Auction").

the PRA via its allocated NRIS service. Nor could it, because as described below this benefit is unrelated to the regulatory purpose of MISO's proposal.

Despite repeatedly describing LARS as a strictly limited interconnection construct tied to service for a specific large load, MISO specifically grants LARS resources NRIS rights with its full suite of benefits. Providing such rights is untethered to the alleged regulatory purpose of LARS, and therefore inappropriate. Specifically, MISO states that "[t]he purpose of LARS is to create a fast and efficient process *for viable, shovel ready projects*."[102] More generally, MISO makes clear that this proposal is responsive to the Department of Energy's Speed to Power initiative, by "providing a process through which significant new large loads and generation intended to support that load can be studied on an accelerated and coordinated basis."[103] As such, it is clear that the LARS program's regulatory purpose is *not* to bolster system reliability in general, and therefore, MISO cannot rely on that purpose for providing the outsized, mismatched, and substantial benefit of full NRIS service rights.

Moreover, because of the way in which the LARS large loads are contractually tied to the generators, it is entirely inconsistent and irrational to allow those same generators full PRA participation rights. If a LARS generator receives expedited interconnection treatment because it is paired with and is intended to "serve"[104] a particular large load in a specific LRZ, permitting that same generator to also compete in the regional capacity market gives it the opportunity to essentially double-dip. This is particularly true for the types of large loads that MISO anticipates connecting, which have disproportionately high load factors and therefore should not have the excess capacity to bid into the PRA.

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[102] *Id.* at 15.
[103] Transmittal Letter at 2.
[104] *See id.* at 9 ("The agreement must demonstrate that the output of the LARS Generating Facility will serve the LARS Associated Load.").

The LARS generator therefore receives the principal benefit sought by any generator (including those in the DPP queue): the ability to obtain deliverable interconnection rights *and* participate in MISO's capacity construct. And it receives that substantial market benefit through an accelerated 120-day process unavailable to other generators. This preferential market access benefit, which is unrelated to the regulatory purpose of LARS, is further compounded by the fact that LARS generators will also have quicker access to additional revenue by virtue of their shorter interconnection timeline while also enjoying lower overall financing costs because such generators will need to maintain study deposits for shorter periods of time.

MISO has not identified any reasonable justification for granting one class of resources expedited access to PRA participation. The sole differentiating factor is that LARS generators possess a contractual relationship with a qualifying large load, which generators in the ordinary queue do not possess. However, the existence of a commercial arrangement with a data center or other large customer does not alter the generator's ability to contribute to regional resource adequacy, and if anything the likelihood of a LARS generator being able to provide that capacity is necessarily lower. Nor does it explain why such a resource should be allowed to receive the full benefits of NRIS service, including but not limited to access to the PRA, more quickly than competing generators intending to serve regional load generally. A generator paired with a data center through a private commercial arrangement is not materially different, *from a resource adequacy perspective*, from a generator developed by an independent power producer seeking to serve regional load generally.

For example, MISO offers no reasonable justification for why "Generator A" may receive expedited NRIS and PRA eligibility through a 120-day LARS process because it signed a contract with a 200 MW data center, while "Generator B" seeking the identical interconnection

product and identical PRA participation rights must proceed through the DPP because it does not have that same contractual relationship. Simply put, MISO offers no meaningful *reliability* distinction between the two generators sufficient to justify drastically different interconnection timelines and rights. Accordingly, MISO has failed to establish that generators seeking identical capacity-market participation rights are differently situated in a manner to justify the proposed discriminatory treatment.

MISO has failed to demonstrate that this disparate treatment is supported by any corresponding reliability or operational distinction, rendering the proposal unduly discriminatory under section 205 of the Federal Power Act.

b. The LARS framework unduly discriminates against load under 200 MW that is seeking to interconnect in MISO

The LARS proposal is designed to provide "expedited review of the addition of 200 MW or greater loads together with new generation resources that are electrically proximate to those loads."[105] This framework is unduly preferential because "shovel ready" load that is *under* 200 MW cannot take advantage of this expedited interconnection product. MISO provides no permissible justification for allowing only larger customers to skip the ordinary interconnection line.

The FPA prohibits MISO from treating customers preferentially. MISO's conduct here is textbook preferential treatment. There is nothing preventing a load under 200 MW from meeting each of the other eligibility requirements by: requesting interconnection service not greater than 150 percent of its peak demand, being located in the same Local Resource Zone as its contracted-for generation, providing a $250,000 application fee, having a Point of Interconnection approved by the Transmission Owner, having full site control, meeting EMT

[105] Transmittal Letter at 1.

modeling requirements, and specifying a commercial operation date not later than three years from its interconnection request.[106] The only limiting criterion is the load size.[107]

As noted above, the alleged "purpose of LARS is to create a fast and efficient process *for viable, shovel ready projects*."[108] MISO fails to identify any technical or operational limitation for loads under 200 MW—that otherwise meet the criteria above—that would prevent them from being just as "viable" and "shovel ready" as loads over 200 MW.

MISO answers the question, "why is the LARS load size limited to at least 200 MW," by stating that the threshold was chosen because loads of that size "would benefit from a coordinated study process and that data center loads in general come in 200 MW blocks."[109] However, smaller loads (e.g., 100 MW loads or pooled loads of 200 MW and larger) could also benefit in the way MISO describes from a coordinated study process as well. MISO offers no operational or technical justification for the discriminatory 200 MW limit, nor can it. Other statements by MISO regarding the 200 MW threshold are circular and do not provide a reasonable justification: for example, MISO states that "limiting LARS load participants to at least 200 MW at one POW ensures that the load coming online is sufficiently large to warrant inclusion in LARS."[110] Absent a clear justification for this preferential treatment, it remains undue and therefore must be rejected.

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[106] Drake Testimony at 21–22.
[107] Nor does MISO explain why smaller resources could not pool together to reach 200 MW, other than a conclusory statement that such pooling would slow down the study process. However, beyond this conclusory statement MISO does not support this restriction with any data or analysis.
[108] Drake Testimony at 15 (emphasis added).
[109] *Id.* at 24.
[110] Transmittal Letter at 11.

c. The LARS framework provides LSEs the unchecked ability to favor their own generation and discriminate against competitors

To protect against undue discrimination, the Commission set a number of open access requirements, which ensure that generation owned by transmission owners is not given preferential access to the transmission system. For nearly a quarter of a century, FERC has rigorously implemented this statutory prohibition by requiring open access in generator interconnection processes.[111] As the D.C. Circuit has acknowledged, "[o]ne of the Commission's chief goals in promulgating standard interconnection rules was to minimize opportunities for undue discrimination by transmission operators, and it does that in part by protecting relatively unencumbered entry into the market."[112]

FERC has therefore been wary of proposals that open the door to undue discrimination by expediting certain generators' interconnections. When FERC recently accepted expedited generator interconnection procedures to meet a demonstrated reliability need in the PJM Interconnection ("PJM") region, it did so only after concluding that: (1) the processes were narrowly tailored to ensure comparable access to interconnection service for resources seeking to show they are capable of meeting the identified reliability need; and (2) the proposal minimized harm to other interconnection customers that could not participate in the expedited process.[113] In other words, to the extent FERC countenances discrimination through expedited interconnection queues, that discrimination must be closely scrutinized to ensure it is due.[114]

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[111] *Standardization of Generator Interconnection Agreements and Procedures*, Order No. 2003, 104 FERC ¶ 61,103, at PP 8–12 (2003); *Improvements to Generator Interconnection Procedures and Agreements*, Order No. 2023, 184 FERC ¶ 61,054, at P 37 (2023).
[112] *Xcel Energy Servs. v. FERC*, 41 F.4th 548, 559 (D.C. Cir. 2022) (cleaned up).
[113] *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,084, at PP 123, 245 (2025).
[114] *See id.* (Rosner & Phillips, Comm'rs, concurring at P 2).

Here, LARS allows vertically integrated utilities, entities with an incentive to discriminate against competitors, to serve as the lead "coordinator," providing them with the authority to discriminate against competitors who also seek to participate in the LARS process. Additionally, the LARS proposal is not narrowly tailored in any of the ways the Commission has previously required in its limited approval of departures from open access principles. Given these deficiencies, the Commission should reject the LARS proposal.

i. The Transmission Customer, often the LSE, is the only party that may submit a LARS application to MISO and is therefore subject to perverse incentives to discriminate against competitors

MISO proposes to require that a transmission customer, which "often" is an LSE, sponsors and "submit[s]" the LARS application.[115] In other words, the LSE is the gatekeeper for participation in LARS, because without it "initiat[ing] the LARS application" the process cannot proceed.[116] The Commission instituted open access to prevent transmission-owning entities, such as many LSEs, from gatekeeping which generators can and cannot interconnect to the grid.[117] This is because, as the Commission has noted, utilities have a distinct incentive to stymie interconnection to the queue from independent generators and otherwise prefer their own generation.[118]

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[115] Transmittal Letter at 6, 8.
[116] *Id.* at 6.
[117] *See, e.g.*, *Alliant Energy Corp. v. FERC*, 253 F.3d 748, 753 (D.C. Cir. 2001) ("Order [No.] 888 was expressly designed to remedy undue discrimination in access to the monopoly owned transmission wires that control whether and to whom electricity can be transported in interstate commerce.") (internal quotations omitted).
[118] Order No. 888's preamble states: "The legal and policy cornerstone of these rules is to remedy undue discrimination in access to the monopoly owned transmission wires that control whether and to whom electricity can be transported in interstate commerce. A second critical aspect of the rules is to address recovery of the transition costs of moving from a monopoly-regulated regime to one in which all sellers can compete on a fair basis and in which electricity is more competitively priced." *Promoting Wholesale Competition Through Open Access Non-*

MISO explains that it has allowed the transmission customer this pivotal role "[b]ecause only the Transmission Customer can procure Transmission Service under established Tariff processes."[119] But MISO's response does not reasonably explain why the setup MISO proposed—which, as described below, is rife with opportunities for discrimination—is needed.

For example, many LSEs have their own generation that they would prefer to use to serve load, and in particular lucrative large loads like data centers. Therefore, the structure of LARS, which gives them final gatekeeping authority, will allow them to either block, undercut, or otherwise disadvantage competitors, principally independent resource developers, from being able to fairly participate in LARS. For example, if a large load is given competitive offers from an LSE and an independent power producer, the large load will have an incentive to choose the LSE even if the independent power producer's offer is more competitive considering the ultimate leverage the LSE holds over the process.

Moreover, LARS does not give any entity—from MISO, to the Commission itself—clear visibility to determine if a Transmission Customer is discriminating by preferring only its own generation projects for LARS. An agency, like the Commission, may not subdelegate its decision-making and oversight authority "to outside entities—private or sovereign—absent affirmative evidence of authority to do so."[120] Additionally, it is unclear whether, under the structure of the LARS proposal, the Commission could even utilize FPA section 206 to conduct an after-the-fact investigation into whether a Transmission Customer discriminated against a LARS applicant if that same Transmission Customer is not subject to Commission jurisdiction

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Discriminatory Transmission Services by Public Utilities, Order No. 888, 61 Fed. Reg. 21,540, 21,541 (May 10, 1996), FERC Stats. & Regs. ¶ 31,036, at 31,634–35 (1996).

[119] Transmittal Letter at 6.

[120] *See U.S. Telecom Ass'n v. FCC*, 359 F.3d 554, 566 (D.C. Cir. 2004); *see also Entergy Servs., Inc.*, 120 FERC ¶ 61,020, at P 28 (2007) ("[R]atemaking obligations … cannot be delegated to a state commission.").

pursuant to Federal Power Act section 201(f). The end result therefore is likely both unknowable and unreviewable.

Indeed, this is a similar problem to one that is currently being litigated with regard to MISO's ERAS proposal, which is currently pending before the U.S. Court of Appeals for the D.C. Circuit.[121] To the extent the petitioners in that case prevail on their structural challenge to ERAS, it will fundamentally undermine the entire framework underpinning this proposal.

ii. The LARS framework is not sufficiently narrowly tailored

FERC has allowed some limited departures from open access requirements if such deviations are narrowly tailored to meet an important need, and principally, this has been when there is an imminent reliability need.[122] But even in these situations, the Commission has required that the intervention be narrowly tailored to meet that need. As discussed above, LARS does not claim to be serving a specific reliability need, and, as a result, it is inherently impossible to narrowly tailor for that need.

But LARS also does not have any of the other indicia of a narrowly tailored program that the Commission has previously required. For example, LARS is not time-limited, as MISO's most recent queue-jumping proposal ERAS was. Additionally, while LARS includes a yearly threshold of three cycles of a maximum of ten projects per cycle, it does not limit the total number of projects or include a cap on the total MW of load proposed to be interconnected. MISO does not even attempt to identify the outer limits of when or how this queue-jumping framework will no longer be necessary, or otherwise explain why it could not undertake such an analysis. The D.C. Circuit has already admonished such an open-ended approach and held that it

[121] *See Clean Wisconsin v. FERC*, No. 25-1264 (D.C. Cir.) (pending).
[122] *See, e.g.*, *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,084 (2025); *Midcontinent Indep. Sys. Operator, Inc.*, 192 FERC ¶ 61,064 (2025).

"cannot overlook such unexplained inconsistency" when the Commission approves a policy that extends beyond the "limited period of time" of identified need.[123]

MISO's proposal also is expressly not limited to physically connected and electrically proximate pairs of load and generation. Instead, LARS generators and load are merely required to be in the same general Local Resource Zone.[124] Indeed, MISO recognizes that this choice does not reflect a narrowly tailored approach where it notes that "there [were] other ways it could have limited the pairing such as requiring the generation and LARS Associated Load to be located in the same Local Balancing Authority area or through requiring that the location of the Generating Facilities be within a specific number of substations of the LARS Associated Load."[125] Without such protections to more narrowly tailor the scope and effect of the proposal, LARS strays far afield from even the limited exceptions to open access principles which the Commission has previously blessed.

C. LARS is an unjustified departure from the Commission's *pro forma* interconnection procedures and does not accomplish the purposes of Order No. 2023

Interconnection is a "critical component of open access transmission service."[126] The Commission standardizes interconnection through *pro forma* interconnection procedures and agreements that every public utility transmission provider must adopt.[127] An RTO or ISO may depart from the *pro forma* documents under the "independent entity variation" standard, but only

[123] *Ky. Mun. Energy Agency v. FERC*, 45 F.4th 162, 186 (D.C. Cir. 2022).
[124] Transmittal Letter at 10.
[125] *Id.*
[126] Order No. 2023, 184 FERC ¶ 61,054, at P 11& n.11 (quoting Order No. 2003, 104 FERC ¶ 61,103 at P 9 (2003)).
[127] Order No. 2003, 104 FERC ¶ 61,103, *order on reh'g*, Order No. 2003-A, 106 FERC ¶ 61,220 (2004), *order on reh'g*, Order No. 2003-B, 109 FERC ¶ 61,287 (2004), *order on reh'g*, Order No. 2003-C, 111 FERC ¶ 61,401 (2005), *aff'd sub nom. Nat'l Ass'n of Regulatory Util. Comm'rs v. FERC*, 475 F.3d 1277 (D.C. Cir. 2007); Order No. 2023, 184 FERC ¶ 61,054, *order on reh'g*, Order No. 2023-A, 186 FERC ¶ 61,199 (2024).

where it "demonstrates that the proposed variation: (1) is just and reasonable and not unduly discriminatory or preferential; and (2) accomplishes the purposes of the order."[128] While this standard is more flexible than a "consistent with or superior to" standard, the Commission has stated that "[i]t is not a sufficient justification to state that a variation conforms to current RTO/ISO practices or to the RTO's/ISO's tariff definitions and terminology."[129] The Commission has applied the standard to recent expedited interconnection proposals, including MISO's ERAS.[130] Here, LARS is a deviation from Order No. 2023, which the D.C. Circuit upheld this summer.[131]

MISO has not shown that it meets the independent entity variation standard with respect to Order No. 2023. MISO asserts that LARS is "just and reasonable" and "not unduly discriminatory," but it never identifies LARS as a variation from the *pro forma* procedures and never explains how a permanent, serial, first-come, first-served interconnection process accomplishes the purposes of a rule that abolished serial, first-come, first-served interconnection processes. MISO's only mention of Order No. 2023 is in a footnote acknowledging that MISO built the LLGIA from a version of its *pro forma* GIA that predates its own Order No. 2023 compliance filing (pending at the Commission) and promising "to reconcile these versions as appropriate once they are accepted."[132] The Commission cannot determine whether a variation

[128] *PJM Interconnection, L.L.C.*, 195 FERC ¶ 61,031, at P 10 (Apr. 16, 2026) (quoting *ISO New England Inc.,* 164 FERC ¶ 61,222, at P 9 (2018)); Order No. 2023, 184 FERC ¶ 61,054 at P 1764 (citing Order No. 2003, 104 FERC ¶ 61,103, at P 826 (2003); and Reform of Generator Interconnection Procedures and Agreements, Order No. 845, 163 FERC ¶ 61,043, at P 556 (2018)).
[129] *Cal. Indep. Sys. Operator Corp.*, 170 FERC ¶ 61,112, at P 11 (2020).
[130] *Midcontinent Indep. Sys. Operator, Inc.*, 191 FERC ¶ 61,131 (2025) (rejecting MISO's initial ERAS proposal).
[131] *Advanced Energy United v. FERC*, No. 23-1282 (D.C. Cir. July 31, 2026) (per curiam) (denying all petitions for review of Order No. 2023).
[132] Transmittal Letter at 24 n.95.

accomplishes the purposes of Order No. 2023 when the baseline from which it varies has not itself been conformed to Order No. 2023. MISO's failure to address the governing standard is itself sufficient reason to reject the filing.

Were the Commission to reach the merits of LARS's status as a valid independent entity variation, the Commission would find that it does not. Order No. 2023's central reform was to replace serial, first-come, first-served studies with first-ready, first-served cluster studies, because the Commission found that serial processing was a primary cause of the unjust and unreasonable backlogs for generator interconnection.[133] MISO already operates a cluster study process, and it describes the DPP's "three-phase, grouped study process" as the mechanism that "identif[ies] and remove[s] speculative or non-feasible projects as more information becomes available."[134] LARS, on the other hand, moves in the opposite direction, to a first-come, first-served process. Each request under LARS is studied "individually and in a serial fashion based on their submission date."[135] MISO argues that this serial process "avoids the dependence on the overall cluster of generating facilities moving forward."[136]

Unlike other expedited interconnection processes approved by the Commission, LARS is permanent. For example, the Commission accepted PJM's Reliability Resource Initiative as a one-time departure, and Commissioners Rosner and Phillips wrote that they would not have found it just and reasonable otherwise.[137] While the Commission accepted MISO's revised ERAS proposal, ERAS includes a sunset date and puts a cap on the number of participants.

[133] Order No. 2023, 184 FERC ¶ 61,054 at PP 44–55, 165 (2023).
[134] Drake Testimony at 9.
[135] Transmittal Letter at 12.
[136] Drake Testimony at 15.
[137] *PJM Interconnection, L.L.C.*, 190 FERC ¶ 61,084 (2025); *id.* (Rosner & Phillips, Comm'rs, concurring).

MISO asks the Commission to allow a permanent serial side-queue it has allowed only as a temporary and bounded exception in recent decisions.

LARS is also counter to the need for certainty that the Commission insisted on in Order No. 2023.[138] LARS reduces certainty for DPP participants in at least two ways. First, as shown above, LARS generators are studied without the DPP queue and DPP customers are studied without LARS generators, so that the upgrade assignments in both processes rest on models MISO concedes are separate and distinct.[139] Second, LARS has no restudy process and MISO will tender LLGIAs before affected system results are available, which it concedes is "necessary to maintain the accelerated speed of the LARS process."[140] MISO seeks to trade certainty for speed for a privileged few data centers and their paired generation.

Order Nos. 2003 and 2023 were also designed to accomplish an open access purpose of ensuring non-discriminatory access to the transmission system. Here too, MISO's LARS proposal does not accomplish the purposes of the Commission's interconnection orders. As discussed *supra*, LARS does not meet the goals of enabling open access to the transmission system because it places access to the LARS interconnection process under the gatekeeping control of self-interested vertically integrated utilities. It grants preferential treatment to generators interconnecting through LARS compared to generators seeking to interconnect through the DPP process.

Additionally, the Commission's interconnection orders were designed to streamline interconnection processes and create a standard, unified interconnection process. By creating a

[138] Order No. 2023, 184 FERC ¶ 61,054, at PP 37–45 (2023).
[139] Drake Testimony at 32–33.
[140] Transmittal Letter at 16, 25–26.

new, parallel interconnection process in LARS, MISO's proposal works crosswise to this simplifying goal.

Finally, Order No. 2023 was designed to increase the speed of interconnection for new generation interconnection requests. While LARS might fast track a limited set of privileged interconnection requests, the creation of a new interconnection queue will put competing pressures on MISO's staff and compute time to process standard DPP requests. And while MISO stated that LARS deposits will fund "*additional* tools, staffing, and process enhancements" rather than drawing on DPP resources,[141] MISO still undermines the purpose of Order No. 2023 to the extent DPP is not receiving these marginal additional resources to speed DPP timelines.[142]

D. MISO's LARS proposal is not responsive to Commission direction regarding "electrically proximate" generation and load from the Show Cause Order

In the Show Cause Order, the Commission found that MISO's Tariff "appears to be unjust and unreasonable" because it did not contain provisions allowing an interconnection customer to serve "an electrically proximate large load."[143] Rather than directly responding to the Commission's Order, MISO invents a new expansive definition of "proximate" in an attempt to demonstrate that its proposal is responsive to the Commission's Order. It is not.

The Commission defined electrically proximate load as a large load "that is sufficiently electrically close to the interconnection customer's requested point of interconnection, such that the impact on the transmission system of the combination of the generating facility and the load, with the exception of the transmission facilities between the two, will be effectively the same as if they were located at the same substation."[144] MISO chose not to conform to this definition and

[141] Drake Testimony at 32.
[142] *See* Drake Testimony at 12 (noting that "the MISO DPP interconnection queue does not move this fast and is designed for a 365-day timeline").
[143] Show Cause Order at P 113.
[144] *Id.* at P 112.

instead "anchor[ed] the proximate requirement with the [Local Resource Zone],"[145] not the two-substation distance the Commission suggests as an example of electrically proximate load and generation.

MISO argues that this new definition is appropriate because the Commission stated that it would "consider proposed revisions to this definition to 'ensure it is *appropriately tailored to MISO's transmission system*.'"[146] However, as MISO itself concedes, its definition of proximate is not grounded in the unique structure of its transmission system, and instead MISO simply "did not want to limit the pairing of generation with associated load to a specific number of substations because that is likely too geographically narrow and could limit how MISO may optimize common transmission solutions."[147] As such, even MISO's novel definition of proximate is inconsistent with the flexibility afforded by the Commission on this issue.

Additionally, MISO justifies this choice by arguing that tying LARS Associated Load to Local Resource Zones "avoids price separation between the paired generation and LARS Associated Load."[148] However, Local Resource Zones do not always align with transmission pricing zones and cost allocation zones.[149] Only zones 2, 8, 11, and 12 have only one transmission pricing zone within the LRZ. Other LRZs with multiple transmission pricing zones will not easily be able to ensure that transmission costs associated with large load additions are assigned to that load. Local Resource Zones are intended to reflect capacity and reliability needs, not transmission cost recovery. MISO intentionally separates these constructs because they

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[145] Transmittal Letter at 21.
[146] *Id.* (quoting Show Cause Order at P 112) (emphasis added).
[147] *Id.*
[148] *Id.* (quoting Drake Testimony at 40–41).
[149] *See generally Use of "Zones" and "Regions" at MISO*, OMS CapCOM (Jan. 11, 2021), *available at* https://www.misostates.org/images/stories/meetings/Cost_Allocation_Principles_Committee/2021/MISO_Zones_and_Regions.pdf.

address different reliability and economic objectives, and MISO's proposed blending of Local Resource Zones with economic objectives is therefore arbitrary. Indeed, the only plausible reason to tie the proximate definition to Local Resource Zones is that those zones are relevant to participation in MISO's capacity construct, which, as described above, is also inappropriate and arbitrary.

E. LARS threatens reliability and efficient planning

LARS would be at least the fifth separate path onto the MISO transmission system, alongside the DPP, ERAS, the pending Zero-Injection Generator Interconnection Agreement ("ZGIA") process, and EPR for load. A sixth, the Large Load Project Review ("LLPR") is currently under development.[150] MISO's addition of another parallel interconnection process takes the region further away from efficient transmission planning. MISO's statement that any constraints that are not addressed in the LARS study due to overallocation would be reconciled in the MTEP process does not promise that these solutions would be minimal upgrades.[151] It promises only that they would be reconciled through the MTEP process. There is a risk under MISO's current proposal that unresolved reliability contingencies identified in a subsequent MTEP process could require mitigation through backbone upgrades or other high-cost solutions resulting from the cumulative impacts of LARS and other interconnection requests, the costs of which non-LARS transmission customers would ultimately have to pay. Due to the permanent nature of MISO's LARS proposal, there is a risk that non-LARS transmission customers could be permanently disadvantaged by the process and bear the costs of transmission investments needed to resolve issues caused, at least in part, by a LARS request, or series of interconnection requests. Each new path to interconnection takes MISO further from efficient planning.

[150] Drake Testimony at 38, 44; Transmittal Letter at 19–20.
[151] Transmittal Letter at 13.

1. Parallel independent studies produce unreliable results and reliability risks

Interconnection studies assign network upgrades on the basis of cumulative impacts. By putting some generators in one model and other generators in another, MISO cannot capture those impacts. The North American Electric Reliability Corporation's ("NERC") model validation guidance states that future-year planning cases "should contain the same component representations as the most recently validated model, unless there is a specific reason for the data to be different," and should represent "the cumulative planned changes to the system" through the period studied.[152] By excluding the DPP, LARS does the opposite of NERC's procedures. Neither set of studies sees the other until MTEP, which is after LLGIAs have been executed and DPP customers have been assigned their upgrades.

The consequences of this mutual blindness of the models are not limited to the cost shifts described above. A constraint that appears only when the two sets of projects are combined might be a contingency for which no mitigation was identified and no upgrade was built, leaving real-time operators without the reconfiguration options the planning process assumed. In the worst case, cascading blackouts could result. A more moderate negative outcome might be load shed as the only tool available to manage unstudied conditions. MISO does not appear to describe the dispatch and case assumptions for the LARS load study. MTEP-based load studies and DPP interconnection studies in MISO are built on different cases and different dispatch assumptions. Without an explanation of which assumptions LARS will use, the Commission has no basis to find that a load study built upon MISO's existing EPR process will identify the constraints that a DPP study of the same generator would identify.

[152] NERC, Procedures for Validation of Powerflow and Dynamics Cases § 1, at 1, *available at* https://www.nerc.com/globalassets/our-work/assessments/nerc_model_validation_procedures_v3.pdf.

Siloing also creates questions around generator retirement. If a LARS generator retires within the fifteen-year pairing period, the Tariff says the load may go through MTEP, but it does not say whether the Attachment Y retirement study and the MTEP restudy of the load occur in sequence or in parallel, or who bears the upgrades needed to keep serving a load whose MTEP approval rested on a generator that no longer exists.[153] Once future MTEP cycles combine generators from the serial and cluster processes into a single model, a withdrawal or retirement in either process can require restudy in the others. MISO has not addressed these interactions.

2. Siloed, expedited processes are already driving MISO's largest transmission investments outside regional planning

MISO acknowledges that "large loads have overtaken the EPR process."[154] In MTEP26, roughly 54 percent of the $14.7 billion of approved transmission investments originated in EPR, as did eight of the ten largest Appendix A projects, representing approximately $6 billion.[155] Transmission additions to the MISO grid of this magnitude will have a dramatic impact on power flows throughout MISO's system, and continuing the analysis of large load needs in an isolated process like that outlined in LARS risks harmful impacts to other transmission customers. By MISO's admission in its LARS filing, the EPR process has become increasingly challenging due to the volume and type of facilities proposed through this process. Take, for instance, the proposed 500 kV Smalling–El Dorado and 500 kV West Fork–St. Landry lines and the 230/500 kV West Fork substation facility evaluated through MISO's EPR process. These two transmission lines span over 200 miles across Louisiana and Arkansas, and the 230/500 kV

[153] Proposed GIP § 3.12.7.4; Proposed Attachment FF § I.D.1.b.ii(g).
[154] Drake Testimony at 26.
[155] MISO, MTEP26 Report Review, Planning Advisory Committee, at 4, 8–9 (Oct. 7, 2026), *available at* https://cdn.misoenergy.org/20261007%20PAC%20Item%2006%20MTEP26%20Report%20Review785938.pdf.

substation is a very large facility comprising $1.1 billion in investment.[156] Backbone facilities of this size manage larger flows of energy that by their nature have more regional impacts, complicating MISO's transmission planning process. To the extent LARS will include projects of this scope, considering them through siloed, expedited processes could disadvantage other transmission customers by separating these projects from a regional process where system impacts could be considered in an integrated manner. In addition, expedited processes like LARS leave little time for MISO to evaluate alternatives that may be most efficient and cost effective, as required under Order No. 1000.[157]

Given the size of recent proposed EPR transmission investments and ERAS generator interconnection requests in MISO that can be linked to load interconnections of several gigawatts, there could be dramatic topology changes in the system that could significantly alter transmission flows on MISO's system if not studied in an integrated manner. A high concentration of load in one area of the grid could create constraints that limit import capability to other load zones on the system, creating a situation where either greater investment in generation or transmission is required to maintain system reliability. Highly constrained areas like these exist today along the industrial corridor of the Gulf Coast, and MISO is currently in the process of assessing system needs related to these load pockets in the wake of load shed events on May 25, 2025[158] and during Winter Storm Uri in 2021.[159] Continuing a process where

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[156] *Id.*
[157] Order No. 1000, 136 FERC ¶ 61,051, at P 6 (2011).
[158] MISO, May 25 Transmission Load Shed Event, Reliability Subcommittee (July 17, 2025), *available at* https://cdn.misoenergy.org/20250717%20RSC%20Item%2007%20May%2025%20Load%20Shed%20Event707855.pdf.
[159] MISO, The February Arctic Event (Feb. 14–18, 2021), *available at* https://cdn.misoenergy.org/2021%20Arctic%20Event%20Report554429.pdf.

transmission needs for gigawatts of load are considered in a siloed process risks the creation or exacerbation of load pockets across MISO's system.

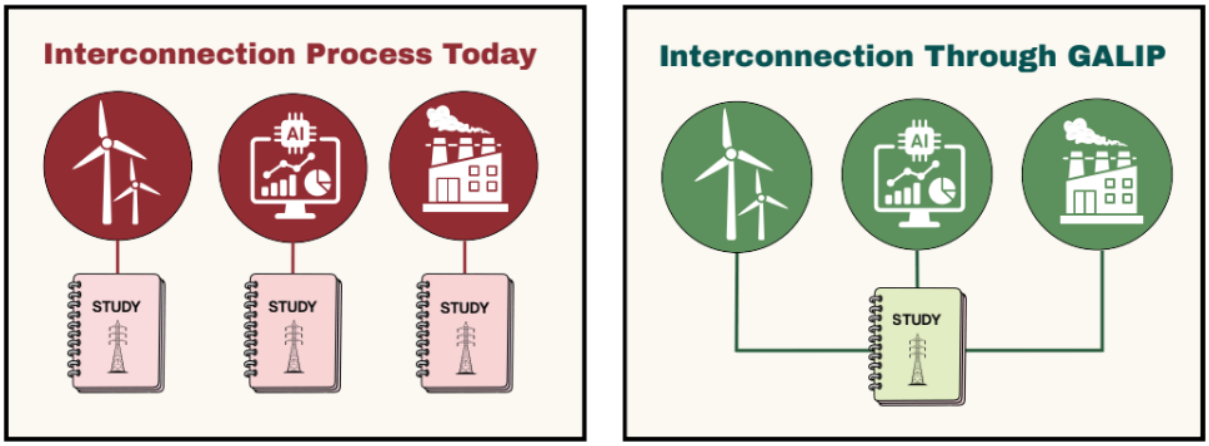
3. Integrated planning processes are available and MISO should adopt them

There are viable alternatives to siloed transmission planning, which is inefficient and costly. In March, the Commission accepted SPP's Consolidated Planning Process ("CPP"), which, in Commissioner Rosner's description, "eliminat[es] the silos between the transmission planning process and the generator interconnection process" by "synthesizing and streamlining them into one recurring three-year planning cycle" that "recognizes that generation and load share one transmission system, and plans for both of their needs holistically."[160] Commissioner Rosner "strongly encourage[d] other transmission providers to take note of the innovative approach the CPP promises, and to consider developing similar integrated solutions tailored to meet the pressing needs within their own footprints."[161] Commissioner Rosner noted that SPP expected to deliver interconnection agreements within nine to ten months of the close of its application window, to cut study costs by millions of dollars, and to avoid more than $100 million in duplicative transmission costs each planning cycle.[162] PJM, responding to its own show cause order, has proposed to "[c]onsolidate generation and merchant transmission interconnection along with long-term firm and large load transmission service studies into a singular 12-month process."[163] Transmission planning becomes more efficient the more future transmission needs can be considered together in the planning process. This is one of the reasons

[160] *Sw. Power Pool, Inc.*, 194 FERC ¶ 61,192, at 62,054, at P 2 (Mar. 13, 2026) (Rosner, Comm'r, concurring).
[161] *Id.* at P 8.
[162] *Id.* at P 2.
[163] PJM Interconnection, L.L.C., Show Cause for Large Loads Framework, Co-Located Load Order Workshop, at 6 (Sept. 30, 2026), *available at* https://www.pjm.com/-/media/DotCom/committees-groups/workshops/cllsco/2026/20260930/20260930-item-02---show-cause-for-large-loads-approach---presentation.pdf.

FERC has required more comprehensive consideration of transmission needs in both transmission and interconnection planning under Order Nos. 1000, 2023, and 1920.[164] MISO ignores that direction in proposing LARS.

After MISO first presented its concept for aligning load and generation studies at the July 16, 2026 LLWG meeting, stakeholders presented a consolidated planning process at MISO.[165] Among other things, the process would assign the costs of Network Upgrades would be allocated by contribution under the DPP's existing cost-causation rules, rather than to load. The proposal drew support across sectors, including from the Environmental Sector.[166]



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[164] *See* Order No. 1000, 136 FERC ¶ 61,051 (2011); Order No. 1920, 187 FERC ¶ 61,068 (2024); Order No. 2023, 184 FERC ¶ 61,054 (2023).
[165] Energy Futures Group, Generator and Load Interconnection Process (GALIP) at 7–12 (Aug. 27, 2026), *available at* https://cdn.misoenergy.org/20260827%20LLWG%20Item%2013%20Generator%20Load%20Interconnection%20Process%20(GALIP)%20Proposal_Energy%20Futures%20Group777224.pdf. Energy Futures Group sought to present GALIP at the August 12, 2026 LLWG meeting, but MISO and the LLWG chair did not make time on that agenda; GALIP was heard in the final half hour of the six-hour August 27, 2026 LLWG meeting.
[166] Environmental Sector Feedback on LLWG-2026-6, MISO Stakeholder Feedback (Aug. 27, 2026), *available at* https://www.misoenergy.org/engage/stakeholder-feedback/2026/llwg-large-load-addition-resource-study-llwg-2026-6-20260827.
[167] Energy Futures Group, *Generation and Load Interconnection Process (GALIP): A Smarter Approach to Interconnection* (Sept. 15, 2026), *available at*

MISO's disagreement with the GALIP proposal reveals its interconnection ethos: "MISO offers different interconnection products to meet different needs."[168] This is problematic for three reasons. First, meeting every new need with a new, siloed interconnection process (as MISO has done with ERAS, the ZGIA, now LARS, and soon the LLPR) significantly increases network upgrade costs and the risk of MISO missing the combined system impacts of all of these parallel processes. Second, multiple interconnection paths increase the risk of bias and subjective assignment of preferential treatment, as discussed above. Third, interconnection studies are performed in sequential order where each stage builds on the models, assumptions, and data of the previous one. Parallel interconnection paths, particularly ones like LARS where the impact is not constrained to a single point of interconnection, are inherently flawed. Since the physics of load and generation interconnection are inextricably tied, MISO's approach of parallel studies will fail to provide a complete view of transmission needs and system demands for LARS resources.

IV. Conclusion

For the foregoing reasons, the Commission should reject all portions of MISO's LARS proposal and direct MISO to engage with stakeholders to advance a different proposal. Alternatively, Clean Energy Advocates and Community Organizations request that the Commission issue a deficiency letter directing MISO to address the issues in this protest. Either course of action should focus on an integration of planning processes that does not undermine the DPP queue or shift costs to DPP customers.

Dated: October 23, 2026

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https://energyfuturesgroup.com/2026/09/15/generation-and-load-interconnection-process-galip-a-smarter-approach-to-interconnection/.

[168] Drake Testimony at 44.

Respectfully submitted,

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CERTIFICATE OF SERVICE

I hereby certify that the foregoing has been served in accordance with 18 C.F.R. § 385.2010 upon each party designated on the official service list in this proceeding, by email.

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